



INDIAN POLITY

POWERS OF PARLIAMENT

MODULE – 70



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SEEN IN THE
PREVIOUS MODULE

CHARGED EXPENDITURE

WHAT IS THE REASON FOR THIS
VARIATION?

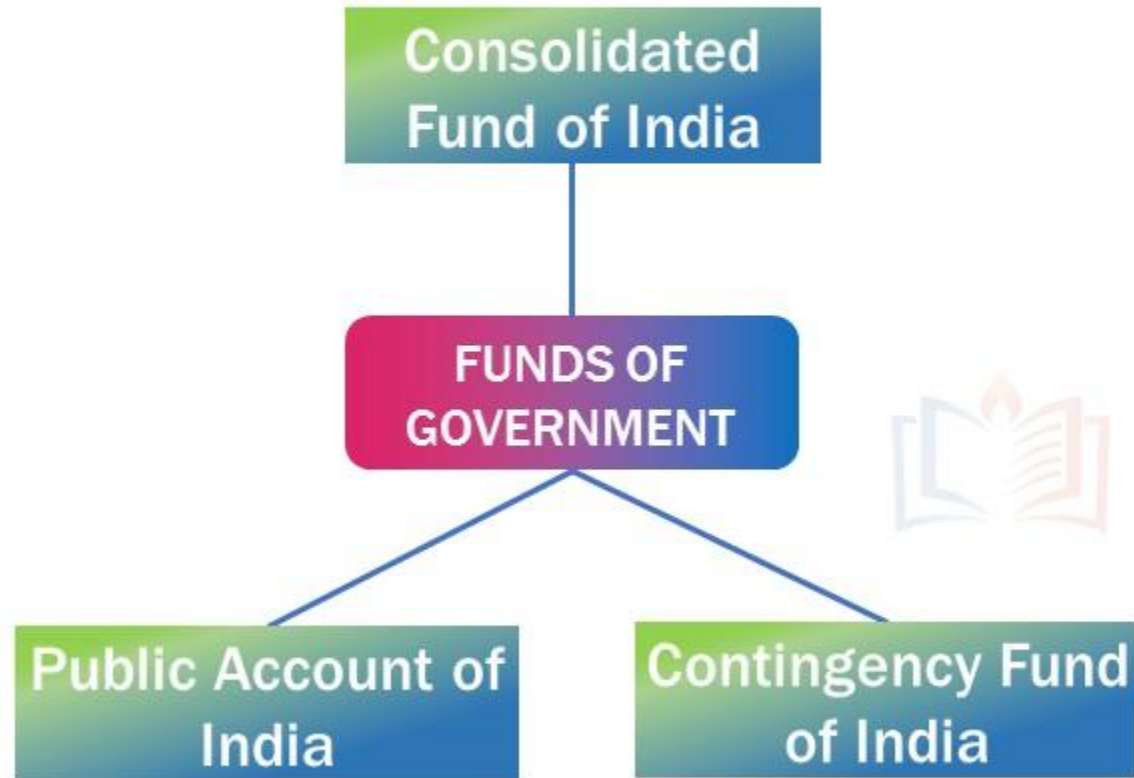
1. Emoluments and allowances of the **President** and other expenditure relating to his office.
2. Salaries and allowances of the **Chairman and the Deputy Chairman** of the Rajya Sabha and the **Speaker and the Deputy Speaker** of the Lok Sabha.
3. Salaries, allowances and pensions of the judges of the Supreme Court.
4. **Pensions** of the judges of high courts.
5. ~~Salary, allowances and pension of the~~ **Comptroller and Auditor General of India.**

- Judges in High Court will draw their salaries from the respective states where they are working i.e. Consolidated Fund of the State.
- They may be transferred to various states and their salaries will be charged from the consolidated fund of “that” state.
- Post-retirement it would be **prejudicial for one state to bear all the pension charges** as the judge might have worked across many states.
- This may be probably one of the reasons why the pensions are charged upon the Consolidated Fund of India.

The answer is quite simple and the question has been asked just to increase analytical thinking amongst students.

PARLIAMENT

FUNDS



The Constitution of India provides for the following three kinds of funds for the Central government:

1. Consolidated Fund of India (Article 266)
2. Public Account of India (Article 266)
3. Contingency Fund of India (Article 267)

PARLIAMENT

FUNDS

1 CONSOLIDATED FUND OF INDIA



- 1 It is a fund to which all receipts are credited and all payments are debited.

- 2 In other words,
 - a) all **revenues received** by the Government of India;
 - b) all **loans raised** by the Government by the issue of treasury bills, loans or ways and means of advances; and
 - c) all **money received by the government in repayment of loans** forms the Consolidated Fund of India.

- 3 All the legally authorised payments on behalf of the Government of India are made out of this fund.

- 4 No money out of this fund can be appropriated (issued or drawn) except in accordance with a parliamentary law.

PARLIAMENT

FUNDS

2

PUBLIC ACCOUNT OF INDIA



- 1 All other public money (other than those which are credited to the Consolidated Fund of India) received by or on behalf of the Government of India shall be credited to the Public Account of India.

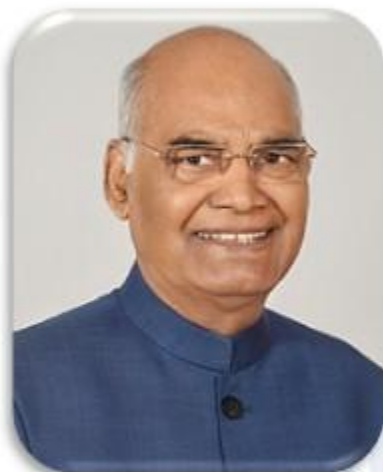
- 2 This includes provident fund deposits, judicial deposits, savings bank deposits, departmental deposits, remittances and so on.
- 3 This account is operated by executive action, that is, the payments from this account can be made without parliamentary appropriation.
- 4 Such payments are mostly in the nature of banking transactions.

PARLIAMENT

FUNDS

3

CONTINGENCY FUND OF INDIA



- 1 The Constitution authorised the Parliament to establish a 'Contingency Fund of India', into which amounts determined by law are paid from time to time.

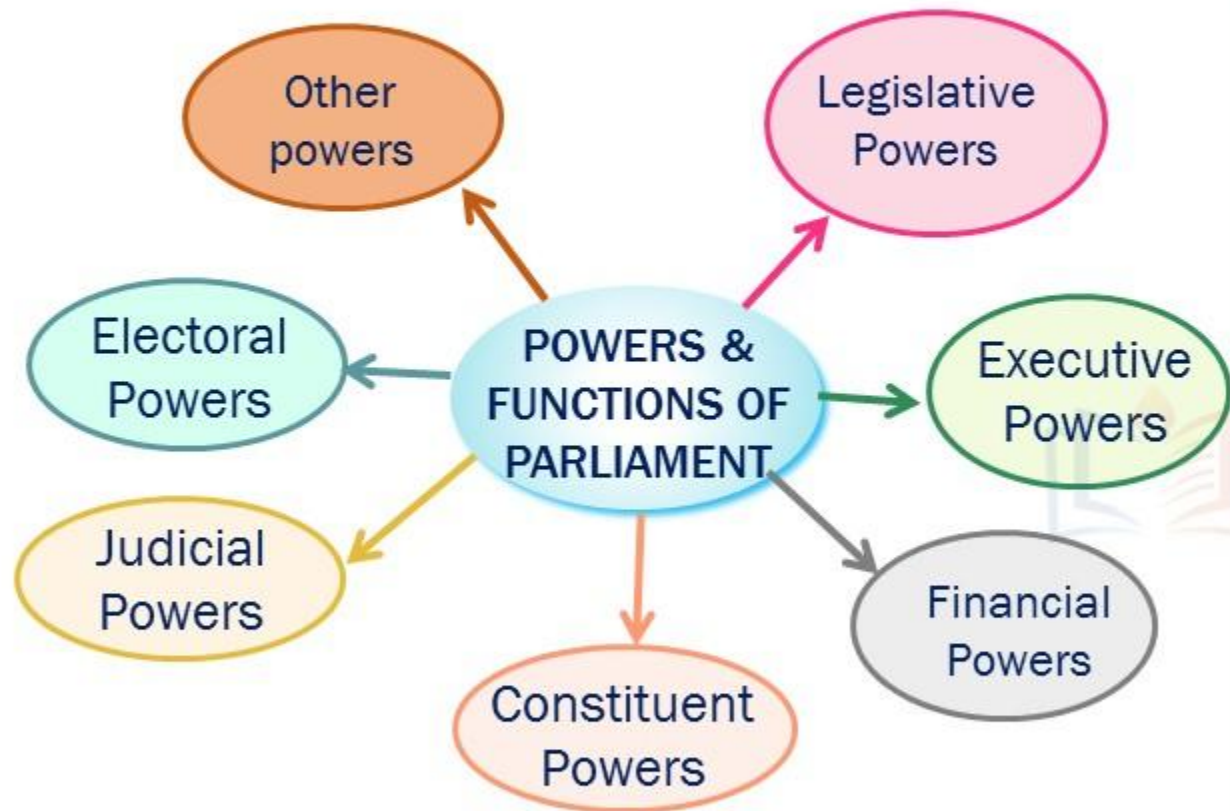
- 2 Accordingly, the Parliament enacted the Contingency Fund of India Act in 1950.

- 3 This fund is placed at the disposal of the president, and he can make advances out of it to meet unforeseen expenditure pending its authorisation by the Parliament.

- 4 The fund is held by the finance secretary on behalf of the president.

- 5 Like the public account of India, it is also operated by executive action.

MULTIFUNCTIONAL ROLE OF PARLIAMENT

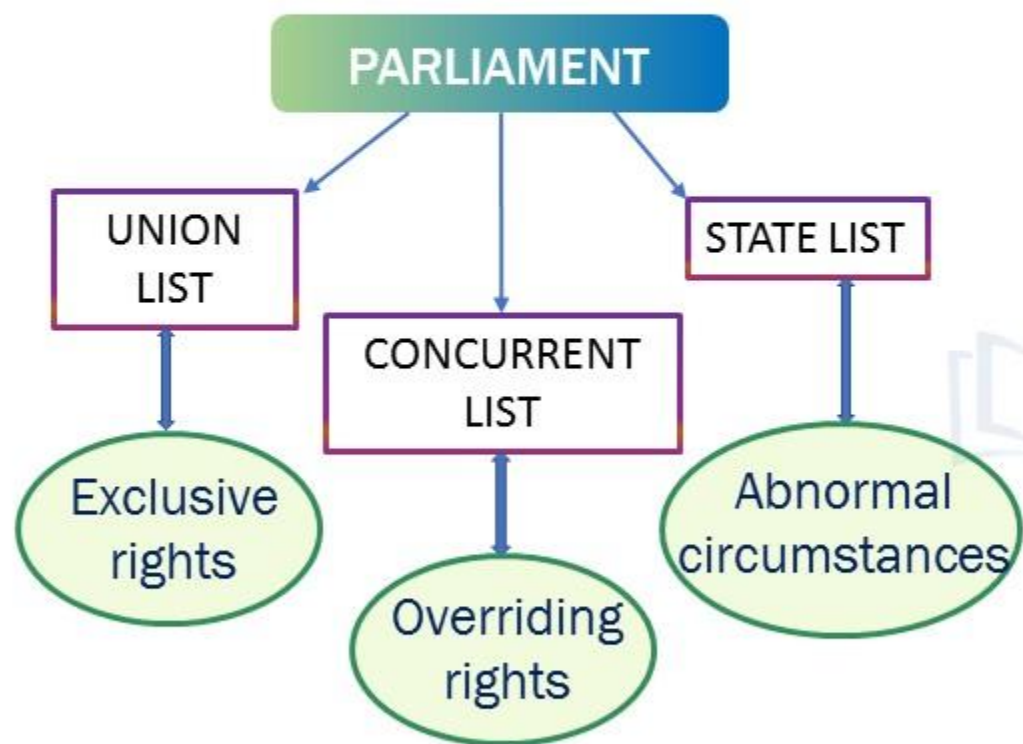


1 In the 'Indian politico-administrative system', the Parliament occupies a central position and has a multifunctional role.

2 It enjoys extensive powers and performs a variety of functions towards the fulfilment of its constitutionally expected role.

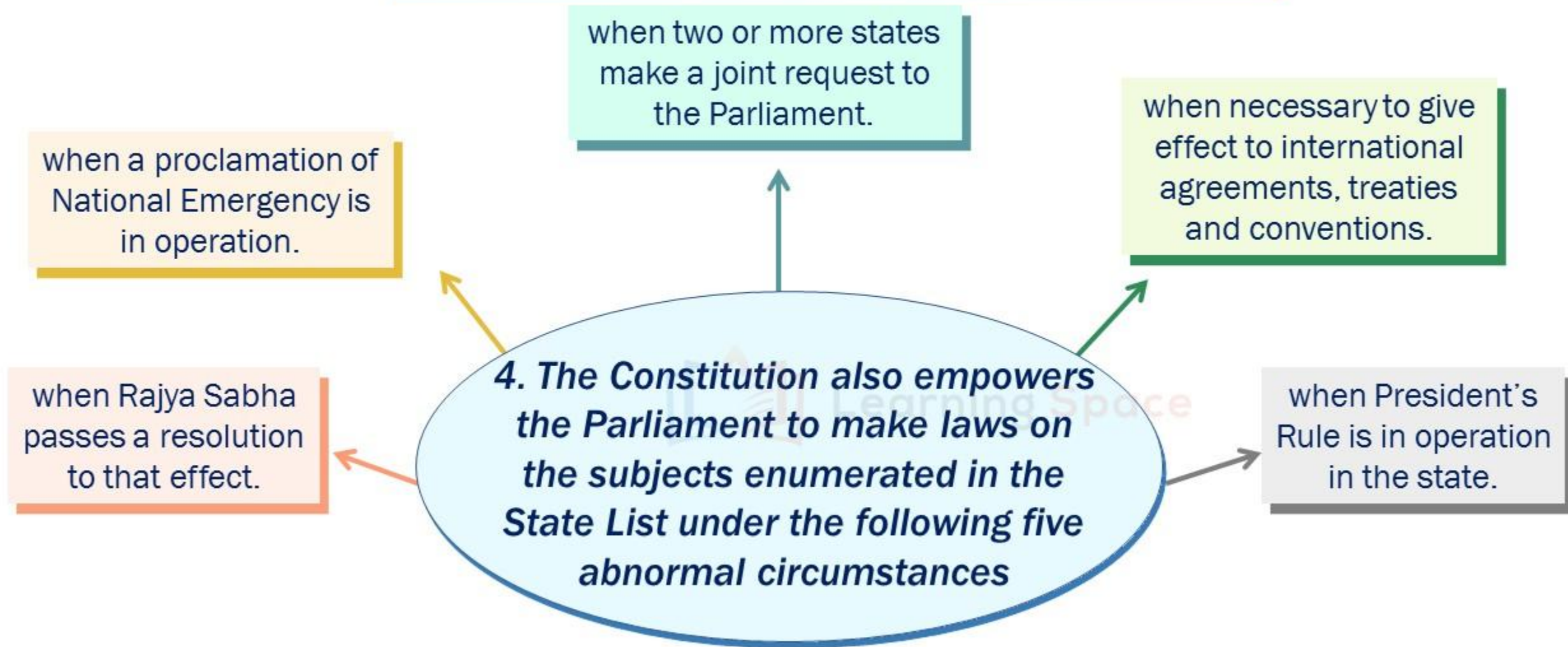
MULTIFUNCTIONAL ROLE OF PARLIAMENT

1. LEGISLATIVE POWERS AND FUNCTIONS



- 1** The primary function of Parliament is to make laws for the governance of the country.
- 2** It has exclusive power to make laws on the subjects enumerated in the Union List and on the residuary subjects (that is, subjects not enumerated in any of the three lists).
- 3** With regard to Concurrent List, the Parliament has overriding powers, that is, the law of Parliament prevails over the law of the state legislature in case of a conflict between the two.

MULTIFUNCTIONAL ROLE OF PARLIAMENT



1. LEGISLATIVE POWERS AND FUNCTIONS

MULTIFUNCTIONAL ROLE OF PARLIAMENT

1. LEGISLATIVE POWERS AND FUNCTIONS



5 All the ordinances issued by the president must be approved by the Parliament within six weeks after its reassembly.

6 An ordinance becomes inoperative if it is not approved by the parliament within that period.

7 The Parliament makes laws in a skeleton form and **authorises the Executive to make detailed rules and regulations within the framework of the parent law.**

8 This is known as **delegated legislation or executive legislation or subordinate legislation.** Such rules and regulations are placed before the Parliament for its examination.

MULTIFUNCTIONAL ROLE OF PARLIAMENT

2. EXECUTIVE POWERS AND FUNCTIONS



- 1 The Constitution of India established a parliamentary form of government in which the **Executive is responsible to the Parliament** for its policies and acts.

- 2 Hence, the **Parliament exercises control over the Executive** through question-hour, zero hour, half-an-hour discussion, short duration discussion, calling attention motion, adjournment motion, no-confidence motion, censure motion and other discussions.

- 3 It also supervises the activities of the Executive with the help of its committees like committee on government assurance, committee on subordinate legislation, committee on petitions, etc.

MULTIFUNCTIONAL ROLE OF PARLIAMENT

2. EXECUTIVE POWERS AND FUNCTIONS



— PARLIAMENT OF INDIA —

4 The ministers are collectively responsible to the Parliament in general and to the Lok Sabha in particular.

5 As a part of **collective responsibility**, there is **individual responsibility**, that is, each minister is individually responsible for the efficient administration of the ministry under his charge.

6 This means that they continue in office so long as they enjoy the confidence of the majority members in the Lok Sabha.

7 In other words, the council of ministers can be removed from office by the Lok Sabha by passing a no-confidence motion.

MULTIFUNCTIONAL ROLE OF PARLIAMENT

2. EXECUTIVE POWERS AND FUNCTIONS

8 The Lok Sabha can also express lack of confidence in the government in the following ways:

By not passing a motion of thanks on the President's inaugural address.

By passing a censure motion or an adjournment motion.

By passing a cut motion.

By rejecting a money bill.

By defeating the government on a vital issue.

9 Therefore, "the first function of Parliament can be said to be to select the group which is to form the government, support and sustain it in power so long as it enjoys its confidence, and to expel it when it ceases to do so, and leave it to the people to decide at the next general election."

MULTIFUNCTIONAL ROLE OF PARLIAMENT

3. FINANCIAL POWERS AND FUNCTIONS



1 No tax can be levied or collected and no expenditure can be incurred by the Executive **except under the authority and with the approval of Parliament.**

2 Hence, the budget is placed before the Parliament for its approval.

3 The enactment of the budget by the Parliament **legalizes the receipts and expenditure of the government** for the ensuing financial year.

4 The Parliament also **scrutinizes government spending and financial performance with the help of its financial committees.**

5 These include Public Accounts Committee, Estimates Committee and Committee on Public Undertakings.

MULTIFUNCTIONAL ROLE OF PARLIAMENT

3. FINANCIAL POWERS AND FUNCTIONS



- 6 They bring out the cases of illegal, irregular, unauthorized, improper usage and **wastage and extravagance in public expenditure**.

- 7 Therefore, the parliamentary control over the Executive in financial matters operates in two stages:
- a) **budgetary control**, that is, control before the appropriation of grants through the enactment of the budget;
 - b) **post-budgetary control**, that is, control after the appropriation of grants through the three financial committees.

- 8 The budget is based on the principle of annuality, that is, the Parliament grants money to the government for one financial year.

MULTIFUNCTIONAL ROLE OF PARLIAMENT

3. FINANCIAL POWERS AND FUNCTIONS



9 If the granted money is not spent by the end of the financial year, then the balance expires and returns to the Consolidated Fund of India.

10 This practice is known as the 'rule of lapse'.

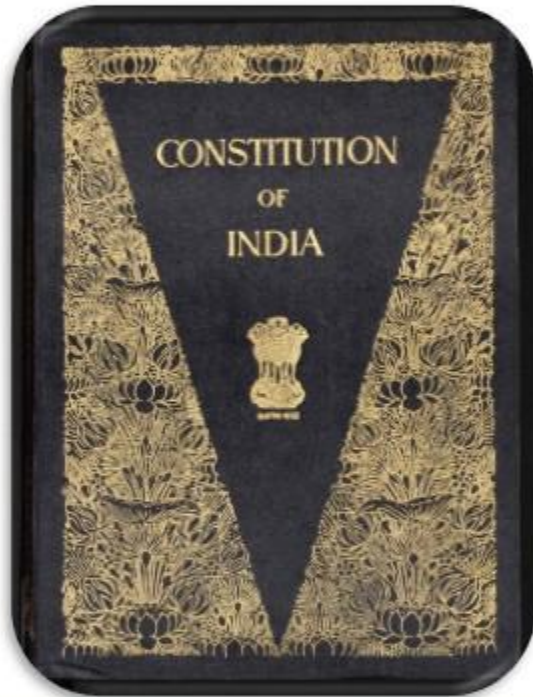
11 It facilitates effective financial control by the Parliament as no reserve funds can be built without its authorization.

12 However, the observance of this rule leads to heavy rush of expenditure towards the close of the financial year.

13 This is popularly called as 'March Rush'.

MULTIFUNCTIONAL ROLE OF PARLIAMENT

4. CONSTITUENT POWERS AND FUNCTIONS



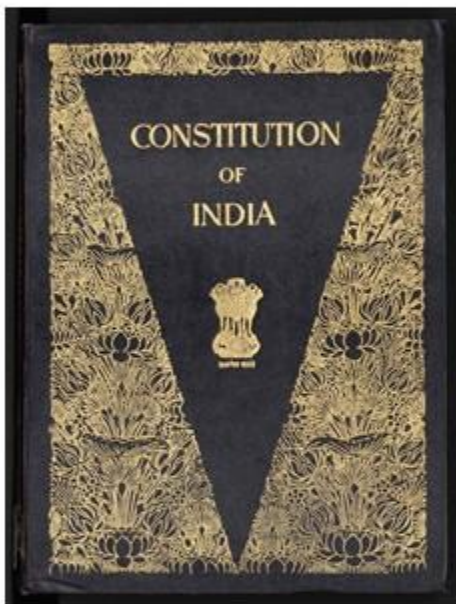
1 The Parliament is vested with the powers to **amend the Constitution by way of addition, variation or repeal of any provision.**

2 The major part of the Constitution can be amended by the Parliament with **special majority**, that is, a majority (that is, more than 50 per cent) of the total membership of each House and a majority of not less than two-thirds of the members present and voting in each House.

3 Some other provisions of the Constitution can be amended by the Parliament with **simple majority**, that is, a majority of the members present and voting in each House of Parliament.

MULTIFUNCTIONAL ROLE OF PARLIAMENT

4. CONSTITUENT POWERS AND FUNCTIONS



- 4** Only a few provisions of the Constitution can be amended by the Parliament by special majority and with the consent of at least half of the state Legislatures (by simple majority).

- 5** However, the **power to initiate** the process of the amendment of the Constitution (in all the three cases) lies exclusively in the hands of the Parliament and not the state legislature.

- 6** There is **only one exception**, that is, the state legislature can pass a resolution requesting the Parliament for the creation or abolition of the legislative council in the state.

- 7** Based on the resolution, the Parliament makes an act for amending the Constitution to that effect.

MULTIFUNCTIONAL ROLE OF PARLIAMENT

4. CONSTITUENT POWERS AND FUNCTIONS



11 This was ruled by the Supreme Court in the Kesavananda Bharati case (1973) and reaffirmed in the Minerva Mills case (1980).

8 To sum up, the Parliament can amend the Constitution in three ways:

- a) By simple majority;
- b) By special majority; and
- c) By special majority but with the consent of half of all the state legislatures.

9 The constituent power of the Parliament is not unlimited; it is **subject to the 'basic structure' of the Constitution.**

10 In others words, the Parliament can amend any provision of the Constitution except the 'basic features' of the Constitution.

MULTIFUNCTIONAL ROLE OF PARLIAMENT

5. JUDICIAL POWERS AND FUNCTIONS

The judicial powers and functions of the Parliament include the following:



1 It can **impeach the President** for the violation of the Constitution.

2 It can **remove the Vice-President** from his office.

3 It can **recommend the removal of judges** (including chief justice) of the Supreme Court and the high courts, chief election commissioner, comptroller and auditor general to the President.

4 It can punish its members or outsiders for the **breach of its privileges or its contempt**.

MULTIFUNCTIONAL ROLE OF PARLIAMENT

6. ELECTORAL POWERS AND FUNCTIONS

Election of President of India



- 1 The Parliament participates in the election of the President (along with the state legislative assemblies) and elects the Vice-President.

- 2 The Lok Sabha elects its Speaker and Deputy Speaker, while the Rajya Sabha elects its Deputy Chairman.

- 3 The Parliament is also authorized to make laws to regulate the elections to the offices of President and Vice-President, to both the Houses of Parliament and to both the Houses of state legislature.

- 4 Accordingly, Parliament enacted the Presidential and Vice-Presidential Election Act (1952), the Representation of People Act (1950), the Representation of People Act (1951), etc.

MULTIFUNCTIONAL ROLE OF PARLIAMENT

7. OTHER POWERS AND FUNCTIONS

The various other powers and functions of the Parliament include:



- 1** It serves as the **highest deliberative body in the country**. It discusses various issues of national and international significance.
- 2** It approves all the **three types of emergencies** (national, state and financial) proclaimed by the President.
- 3** It can create or abolish the state **legislative councils** on the recommendation of the concerned state legislative assemblies.
- 4** It can increase or decrease the area, **alter the boundaries and change the names of states** of the Indian Union.
- 5** It can regulate **the organization and jurisdiction of the Supreme Court and high courts** and can establish a **common high court for two or more states**.

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For Suggestions:

suggestions@learningspace.in

To Contact us:

info@learningspace.in

OUR TEAM

G. V. Rao
K. Srikanth
D. Sunil Kumar
L. V. Krishna
Y. Deepthi

Amrita Naidu
M. Binukrishna
G. Ravi Babu
D. Joji
K. Victor Babu

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